

		upon reproductive health decision-making, which includes pregnancy, childbirth, or related medical conditions. The EFAA applies to the FAC, which in turn invalidates the Agreement. As the EFAA applies to invalidate the Agreement against a single claim, it applies to invalidating the Agreement against all of Plaintiff's claim. (<i>Casey, supra</i>, 108 Cal.App.5th at 588.) The Motion is DENIED based on the EFAA. As such, the court need not address the unconscionability arguments. <i>Plaintiff's counsel to give notice.</i>
4.	Mott v. Fortiva Financial, LLC 25-1476893	Before the Court is a motion to compel arbitration filed by defendant Fortiva Financial, LLC (Defendant) against plaintiff Lynda Mott (Plaintiff). For the reasons set forth below, the motion is DENIED. Defendant argues the Federal Arbitration Act ("FAA") applies. The FAA generally governs arbitration in written contracts involving interstate commerce and authorizes enforcement of arbitration clauses unless grounds exist in law or equity for the revocation of any contract. (9 U.S.C. § 2.) FAA embodies a strong federal policy favoring arbitration. To assure uniform results as to arbitrability of disputes subject to the Act, conflicting state law is preempted under the Supremacy Clause. (<i>Southland v. Corp. v. Keating</i> (1984) 465 U.S. 1, 12.) The party claiming the contract involves interstate commerce and the FAA preempts state law has the burden of proving that the underlying transaction involved interstate commerce. (<i>Woolfs v. Sup. Ct.</i> (Turner)(2005) 127 Cal.App.4th 197, 211-214.) Defendant produced some evidence of interstate commerce. (Arshad Decl. Ex. G; Hopkins-Donihe Decl. ¶¶ 2, 13, 16; Compl. ¶ 23.) Plaintiff neither disputes nor confirms whether the FAA applies. But whether the FAA applies is not really at issue because Defendant does not contend that any state law is preempted by the FAA. In fact, Defendant also cites to the California Arbitration Act in support of the motion. (Motion, p. 10.) The enforcement language of the FAA is almost identical to <i>Code of Civil Procedure section 1281</i>. Just like a motion to compel arbitration under the California Arbitration Act, <i>Code of Civ. Proc. § 1280 et. seq.</i>, a motion to compel arbitration under the FAA requires a finding that an agreement exists for arbitration between the parties and the agreement covers the dispute. (<i>AT&T Technologies, Inc. v. Communications Workers of America</i> (1986) 475 U.S. 643, 648-49.) State law applicable to contracts generally governs whether a valid agreement to arbitrate exists. (<i>Perry v. Thomas</i> (1987) 482 U.S. 483, 492, fn. 9; <i>Stutler v. T.K. Contractors, Inc.</i> (6th Cir. 2006) 448 F.3d 343, 347; <i>Metters v. Ralphs Grocery Store Co.</i> (2008) 161 Cal.App.4th 696, 701 ("federal policy in favor of arbitration does not come into play . . . until a court has found the parties entered into a valid contract under state law.").)

		Thus, whether the FAA applies or not, the question is whether there is a valid, enforceable arbitration agreement and whether grounds exist for its revocation under California law. To form a contract under California law, there must be mutual assent. (<i>Herzog v. Super. Ct.</i> (2024) 101 Cal.App.5th 1280, 1293-1294; <i>Long v. Provide Commerce, Inc.</i> (2016) 245 Cal.App.4th 855, 862.) “[M]utual manifestation of assent, whether by written or spoken word or by conduct, is the touchstone of contract.” (<i>Long</i>, at p. 862, internal quotes omitted.) Defendant produced the Cardholder Agreement for the credit card account ending in 0144, which includes an arbitration provision that covers claims related to the application for or issuance of the account, use of the credit card account and statements related to the account. (Hopkins-Donihe Decl., Ex. C at p. 5.) In the complaint, Plaintiff alleges she is the victim of identity theft and that she did not authorize or consent to the application for, or use of, the credit card ending in 0144, or otherwise agreed to the Cardholder Agreement. (Compl. ¶¶ 23-40.) The arbitration agreement covers the claims, but only if Defendant can meet its burden Plaintiff was not actually the victim of identity theft and was in fact, the person who applied for and used the credit card. Here, Defendant has not shown by a preponderance of the evidence that Plaintiff assented to the terms of the Cardholder Agreement, including the arbitration provision. Defendant’s timeline and description of events, including phone calls from Plaintiff’s phone number evidencing consent, is consistent with identity theft, including a person hacking into someone’s computer or phone and falsely pretending to be that person. The actions taken by Plaintiff are also consistent with a person whose identity has been stolen and trying to correct the issue. (Hopkins-Donihe Decl. ¶¶ 8-16, 19, Ex. F; Mott Decl. ¶¶ 2-19, Exs. A, B.) Defendant failed to meet its burden showing a valid and enforceable arbitration agreement between the parties. The motion is therefore DENIED. <i>Counsel for Plaintiff shall provide notice of this ruling.</i>
5.	Williams v. Southern California Edison 23-1300300	The motion to bifurcate and try issues of causation in advance of issues of damages filed by defendant Southern California Edison Company (Defendant) is DENIED. <i>Code of Civil Procedure section 598</i> provides that the court may order certain issues tried before others “when the convenience of witnesses, the ends of justice, or the economy and efficiency of handling the litigation would be promoted thereby[.]” (<i>Code Civ. Proc.</i>, § 598.) Similarly, <i>Code of Civil Procedure section 1048(b)</i> provides: “The court, in furtherance of convenience or to avoid prejudice, or when separate trials will be conducive to expedition and economy, may order a separate trial of any cause of action, including a cause of action asserted in a cross-complaint, or of any separate issue or of any number of causes of action or issues, preserving the right of trial by